

School: ST ANDREWS, Aylmerton

Date: 02/03/2021

Report: Remote consultation

DPE: Linda Mortimer

School member: Carol Keable, Headteacher and Julie Jackson Assistant Headteacher

Consultation details

- Overview of Article 30 of the GDPR and how this relates to Data Controllers
- Demonstration of the Record of Processing Tool with specific focus on processing payroll in Sage
- Website updates including best practice areas
- Review of the school's existing policies, including the Data Protection Policy and Privacy Notice and other policies that have been adopted since the last visit on the 5.11.19
- Review of training i.e. GDPR refresher and work away from school. DPE recommends that all staff refresh their GDPR training on a 2-yearly basis
- Internal audit template
- Q&A – HR file retention was discussed. Please see response under Section 7 below

Priorities from the consultation are detailed below:

1. **Update the GDPR Policy and Privacy Notices** to the latest DPE version or amend existing to include COVID-19 related information. There are now separate Privacy Notices for: Workforce, General and Students and there is now a child friendly notice. Ideally you will now update your documentation to the latest versions as there have been several revisions.
2. **Training:**
 - Review training completed and follow up with staff yet to complete training
 - Identify any additional training modules that can be completed; work away from school and data breaches etc
3. **Publication scheme:** The school has the option of adopting DPEs model publication scheme (please refer to section 3)
4. **Internal audit walks:** demonstrated the online walk during the consultation. Suggested the school could also complete their own end of day walk and report findings back to staff (raising awareness)
5. **Record of Processing (RoP):** Linda Mortimer has met online with Julie Jackson on the 1.2.21 to work through a Finance related. LM will liaise with Julie to make a further appointment either in the Easter holidays or in late summer half term to work through some HR RoPs
6. **Compliance action best practice area/checklist and governor best practice area:** The compliance best practice area/checklist can be used to manage progress, print off reports for Trustees and support consultants during visits/remote consultations.

Links and additional guidance in order of priority actions detailed below:

1. GDPR policy update and Privacy notice updates

The latest GDPR policy and Privacy Notices can be located from the compliance best practice area:

<https://dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>

Regardless of adopting the very latest documents your current privacy notice and policy should now include sections for COVID-19 - refer to the July 17 update: <https://dataprotection.education/index.php/best-practice-library/best-practice/coronavirus>

2. Setting staff up for e-learning training and mini training guides

You should now be reviewing training i.e. GDPR refresher, data breaches and work away from school. You can check which staff have or have not completed the various modules by selecting the reports from your dashboard: <https://dataprotection.education/manager-reports?view=reports>

Users can be set up on the system by adding individually or importing as a group:

<https://dataprotection.education/student-list/users>) Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education

All staff should now have completed some form of data protection training.

The dashboard now has mini training videos for many of the main areas, including data breaches and SARS. There is also a data breach and SAR best practice area where all the information is now situated.

3. Publication scheme

The publication scheme has now been updated and as a public authority you should have one. **The updated guidance can be obtained from:** <https://dataprotection.education/news-top/news/83-best-practice-updates/182-model-publication-scheme-amendments-improvements-and-updates>

Updated publication schemes can be obtained from: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information>

4. Audit walk

As we are unable to visit at present it is worth considering completing your own internal walk. You can check against previous report findings to identify improvements or areas that still need to be improved. You can also use the best practice guides to support the process: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guid>

DPE will also be providing a live online audit walk that will be available shortly (demonstrated during the consultation).

5. Record of Processing (RoP)

The RoP will start to be used for your record of processing. DPEs methodology for rolling out the RoP can be found here: <https://kb.dataprotection.education/news-top/news/94-siteupdates/175-record-of-processing->

[rop-supporting-information](#) The RoP can be used for risk assessments (DPIAs), especially where new technologies are being introduced. Always email: dpo@dataprotection.education for support if needed.

Next steps:

We will work with you and demonstrate how the RoP can be adapted to reflect your school's individual practice.

Step 1 - a general introduction to the RoP tool with a brief overview of the generic process relating to financial/management of the school. This has been provided at the online meeting on the 1.2.21 with Julie Jackson and also at the meeting with the Headteacher on the 2.3.21.

Step 2- a more in depth look at the RoP with key process owners and how completing the master lists will ensure the school reflects the technical measures and procedures it has in place to safeguard personal data.

Step 3 – online workshops and group sessions to support schools with further individual sessions as needed.

Note: a number of reporting functions i.e. risk reports will shortly be available.

6. Compliance checklist and governance

A reminder that the **compliance checklist** can be used to support ongoing compliance, supporting consultants during remote sessions and for monitoring with governors. Reports can be printed from the compliance checklist: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance> There are many more checklists that you'll find useful.

In addition, the governor best practice and terms of reference can also be used to support compliance if needed: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/governors-and-data>

7. Q and As

The school asked about retention schedules for HR files having recently been challenged to find HR information relating to an ex-employee, which if adhering to the IRMS retention schedule, would have normally been destroyed. Given that the school has only had a management information system in place for the past 3 years, there is a reliance on hard copy files as the current archived information on the MIS does not span the 6 years retention period.

As per the IRMS retention schedule, staff files should only be retained for 6 years after the staff member leaves / retires.

A record of staff who have worked at the school can be retained for longer than this period for archival purposes, but full hard copy files should be securely deleted after the 6 year period.

Going forward, staff information will be archived on the MIS, thereby creating a permanent record of who has worked and in which capacity at the school and therefore these hard copy files will be subject to the recognised retention period of 6 years and should be deleted in the required timeframe.

